

EXHIBIT 1

LEGAL DESCRIPTION OF
RECREATION FACILITIES

OF

BARWOOD CONDOMINIUM IV, A CONDOMINIUM

TO

EXHIBIT G

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENT AND MAINTENANCE
RECREATION FACILITIES, BARWOOD CONDOMINIUM IV

DECLARATION OF CONDOMINIUM

FOR

BARWOOD CONDOMINIUM IV, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

LEGAL DESCRIPTION

RECREATION FACILITIES, BARWOOD CONDOMINIUM

That parcel of land denoted as Recreation Area "A", as shown on Plat I of Barwood, which is recorded in Plat Book 31, Pages 24 and 25, Public Records, Palm Beach County, Florida.

TOGETHER WITH:

That portion of Block A contained within the loop of Barwood Lane North as shown on the aforesaid Plat I of Barwood, further described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on the aforesaid Plat I of Barwood; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point; thence with a bearing of N. $88^{\circ} 40' 37''$ W., a distance of 25.00 feet to the Point of Beginning; thence with a curve to the right having a tangent bearing of S. $1^{\circ} 19' 23''$ W., a radius of 625.00 feet, an arc length of 44.39 feet to a point; thence with a bearing of S. $52^{\circ} 46' 59''$ W., a distance of 36.80 feet to a point; thence with a bearing of N. $79^{\circ} 49' 37''$ W., a distance of 41.29 feet to a point; thence with a curve to the right having a radius of 61.67 feet, an arc length of 281.09 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet;

thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 15.07 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 105.10 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 28.78 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 179.00 feet to a point; thence with a bearing of S. $61^{\circ} 51' 31''$ E., a distance of 28.78 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.00 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 281.72 feet to a point; thence with a bearing of S. $85^{\circ} 05' 03''$ W., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence with a curve to the right having a tangent bearing of N. $80^{\circ} 18' 45''$ W., a radius of 100.00 feet, an arc length of 32.2 feet to a point; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 36.0 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 48.50 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 281.72 feet to a point; thence with a bearing of S. $85^{\circ} 05' 03''$ W., a distance of 25.00 feet to a point; thence with a curve to the right having a tangent bearing of N. $80^{\circ} 18' 45''$ W.,

a radius of 100.00 feet, an arc length of 32.2 feet to a point, thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 36.0 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 48.50 feet to the Point of Beginning of the centerline of the subject easement; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.0 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida and a portion of PLAT II of BARWOOD as recorded in Plat Book 33, Pages 27-28 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet; thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 364.15 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $27^{\circ} 11' 29''$ W., a distance of 36.10 feet to a point; thence with a bearing of N. $19^{\circ} 01' 23''$ E., a distance of 213.94 feet to a point; thence with a curve to the left having a radius of 675.00 feet an arc length of 208.52 feet to a point; thence with a bearing of N. $74^{\circ} 03' 20''$ E., a distance of 54.36 feet to a point; thence with a curve to the right having a tangent bearing of S. $35^{\circ} 17' 43''$ E., a radius of 187.75 feet, an arc length of 45.53 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 75.55 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 22.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 163.00 feet to a point; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 22.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 191.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 67.25 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 95.11 feet to a point lying on the North right-of-way line of S.W. 18th Street; thence with a bearing of West along said North right-of-way line of Southwest 18th Street a distance of

73.63 feet to a point; thence with a curve to the right having a radius of 1205.00 feet, an arc length of 349.00 feet more or less to the Point of Beginning.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 86.42 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 119.70 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 244.70 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet to the Point of

Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. 68° 36' 00" E., a distance of 34.75 feet to a point; thence with a bearing of N. 21° 24' 00" W., a distance of 156.00 feet more or less to the end of the centerline of the subject easement.

Containing a total of 4.568 Acres, more or less and subject to easements and rights-of-way of record.

PALM OFF
BEACH REC 2844 PAGE 975

EXHIBIT 2

LEGAL DESCRIPTION OF PROPERTY
TO BE SERVED BY
RECREATION FACILITIES AT BARWOOD
(ALL PHASES) CONDOMINIUM

BARWOOD CONDOMINIUM IV, A CONDOMINIUM

TO

EXHIBIT G

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENT AND MAINTENANCE
RECREATION FACILITIES, BARWOOD CONDOMINIUM IV

DECLARATION OF CONDOMINIUM

FOR
BARWOOD CONDOMINIUM IV, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

All of Block "A", Plat I of BARWOOD as recorded in Plat Book 31, Pages 24 and 25 and Plat II of BARWOOD as recorded in Plat Book 33, Pages 27 and 28 of the Public Records of Palm Beach County, Florida:

LESS:

That parcel of land denoted as Recreation Area "A", as shown on Plat I of Barwood, which is recorded in Plat Book 31, Pages 24 and 25, Public Records, Palm Beach County, Florida.

ALSO LESS:

That portion of Block A contained within the loop of Barwood Lane North as shown on the aforesaid Plat I of Barwood, further described as follows:

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ALSO LESS:

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

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thence S. $56^{\circ} 05' 28''$ E., a distance of 583.62 feet to a point; thence with a curve to the left, having a radius of 1205.00 feet, an arc length of 15.07 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 105.10 feet to the Point of Beginning of the herein described parcel of land; thence with a bearing of N. $61^{\circ} 51' 31''$ W., a distance of 28.78 feet to a point; thence with a bearing of N. $28^{\circ} 08' 29''$ E., a distance of 179.00 feet to a point; thence with a bearing of S. $61^{\circ} 51' 31''$ E., a distance of 28.78 feet to a point; thence with a bearing of S. $28^{\circ} 08' 29''$ W., a distance of 179.00 feet more or less to the Point of Beginning.

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73.63 feet to a point; thence with a curve to the right having a radius of 1205.00 feet, an arc length of 349.00 feet more or less to the Point of Beginning.

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Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 156.00 feet more or less to the end of the centerline of the subject easement.

Containing a total of 4.568 Acres, more or less and subject to easements and rights-of-way of record.

EXHIBIT H

ARTICLES OF INCORPORATION

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

TO

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM IV, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

STATE OF FLORIDA

DEPARTMENT OF STATE



I certify that the following is a true and correct copy of

CERTIFICATE OF INCORPORATION

OF

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

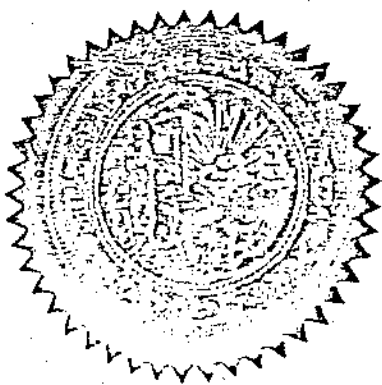
filed in this office on the 23rd day of March,

19 76 .

Charter Number: 735353

GIVEN under my hand and the Great
Seal of the State of Florida, at
Tallahassee, the Capital, this the
23rd day of March,
19 76.

SECRETARY OF STATE



PALM OFF 2844 PAGE 983
BEACH REC

ARTICLES OF INCORPORATION
OF
BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

The undersigned hereby associate themselves for the purpose of forming a corporation not for profit under Chapter 617, Florida Statutes, and certify as follows:

ARTICLE I

The name of the corporation shall be:

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

ARTICLE II

Purpose

The purposes and objectives of the Association shall be:

1. To provide and promote the health, recreation and social welfare of the Unit Owners within the area referred to in Exhibit 1 attached hereto, as authorized by the Articles of Incorporation, the By-Laws of the Barwood Condominium Improvement Association, Inc., and the Declaration of Covenants and Restrictions for Improvement and Maintenance now or hereafter filed on all or any portion of the area referred to in Exhibit 1.
2. To operate, maintain, repair, and improve landscaping, structures and other improvements and promulgate rules and regulations concerning the recreation facilities upon the real property described in Exhibit 2.
3. To perform all functions and exercise such powers contemplated of the Barwood Condominium Improvement Association, Inc., and delegated to the Board of Directors of the Barwood Condominium Improvement Association, Inc., in any Declaration of Covenants and Restrictions for Improvement and Maintenance now or hereinafter filed on all or any portion of the area referred to in Exhibit 1 and Exhibit 2.
4. To provide for private security, fire safety and protection, and similar functions and services in the area described in Exhibit 2.
5. To provide, (purchase, acquire) replace, improve, maintain and/or repair such buildings, structures, street lights

and other structures, landscaping, paving and equipment, both real and personal, related to the health, safety and social welfare of the members of the Association in conjunction with operating the recreation facilities located upon the real property described in Exhibit 2.

6. To operate without profit for the sole and exclusive benefit of its members.

ARTICLE III

Powers

The Barwood Condominium Improvement Association, Inc., shall have the following powers:

1. The Barwood Condominium Improvement Association, Inc., shall have all of the common law and statutory powers of a corporation not for profit under the laws of the State of Florida which are not in conflict with the terms of these Articles.

2. To enter into, make, establish, and enforce rules, regulations, by-laws, covenants, restrictions and agreements to carry out the purposes of Barwood Condominium Improvement Association, Inc.

3. To make and collect assessments against members of the Barwood Condominium Improvement Association, Inc., to defray the costs, expenses, reserves and losses of the Barwood Condominium Improvement Association, Inc., as provided in Article VI hereinafter.

4. To use the proceeds of assessments in the exercise of its powers and duties, and as contemplated by the functions and powers delegated to the Barwood Condominium Improvement Association, Inc., by the Declaration of Covenants and Restrictions for Improvement and Maintenance now or hereafter filed on all or any portion of that area described in Exhibit 1.

5. To hold funds for the exclusive benefit of the members of the Barwood Condominium Improvement Association, Inc., as set forth in these Articles of Incorporation and as provided in any Declaration of Covenants and Restrictions for Improvement and Maintenance now or hereafter filed on all or any portion of that area described in Exhibit 1 and Exhibit 2.

ARTICLE IV

Members

PALM OFF
BEACH REC 2844 PAGE 985

1. The members of Barwood Condominium Improvement Asso-

ciation, Inc., shall consist of all Condominium Unit Owners within the area described in Exhibit 1. Each Unit Owner shall be a member upon title of the condominium parcel being conveyed by deed and being recorded among the Public Records of Palm Beach County, Florida. The record owners of all condominium parcels within the area described in Exhibit 1 shall be members of the Barwood Condominium Improvement Association, Inc., and no other persons or entities shall be members.

2. Transfer of membership in the Barwood Condominium Improvement Association, Inc., shall be established by the recording in the public records of Palm Beach County, Florida, of a condominium deed or other instrument establishing a record title to a condominium parcel in a condominium located within the area described in Exhibit 1, the owner or owners designated by such instrument thereby becoming a member or members of the Association. The membership in the Association of the prior owner or owners shall be thereby terminated.

3. The share of a member in the funds and assets of the Barwood Condominium Improvement Association, Inc., cannot be assigned, hypothecated or transferred in any manner except as an appurtenance to his or her condominium parcel.

4. The members of the Barwood Condominium Improvement Association, Inc., singly or collectively, shall be entitled to only one vote for each condominium parcel owned by them. The exact manner of exercising voting rights when there are two or more owners of one condominium parcel shall be determined by the by-laws of the Barwood Condominium Improvement Association, Inc.

ARTICLE V

Voting

A member shall represent himself, or may authorize by proxy the condominium association in which he is a member to act on his behalf, in all meetings or other activities which a member of the Barwood Condominium Improvement Association, Inc., is entitled to attend.

ARTICLE VI

Assessments

1. Subject to the restrictions and limitations set forth herein, each member shall pay to the Barwood Condominium Improvement Association, Inc., an annual assessment in monthly installments which shall be determined by the Board of Directors.

2. The Barwood Condominium Improvement Association, Inc., will secure funds with which to operate by assessment of each member pursuant to a budget adopted annually by the Board of Directors.

ARTICLE VII

Directors

1. The affairs of the Barwood Condominium Improvement Association, Inc., shall be managed by the Board of Directors consisting of not less than three (3) nor more than nine (9) members. The initial Board of Directors shall consist of four (4) members.

2. The Directors of the Association shall be elected at the annual meeting of the members in the manner determined by the By-Laws. Directors may be removed and vacancies on the Board of Directors shall be filled in the manner provided by the By-Laws.

3. The first election of Directors by the membership of the Association shall not be held until after all condominium parcels located upon the real property described in Exhibit 2 have been sold and closed by the Developer, or until the Developer shall voluntarily call an election, whichever shall first occur.

4. The Directors herein named shall serve until the first election of Directors by Association members and any vacancies in their number occurring before the first election shall be filled by the remaining Directors.

5. The names and addresses of the members of the first Board of Directors who shall hold office until their successors are elected and have qualified, or until removed, are as follows:

<u>Name</u>	<u>Address</u>
George H. Sparling	9740 S.W. 19th Street Boca Raton, Florida 33432
Madaleane H. Evans	23099 Barwood Lane North #301 Boca Raton, Florida 33432
Barbara M. Sparling	9740 S.W. 19th Street Boca Raton, Florida 33432
Ella E. Surerus	23099 Barwood Lane North #401 Boca Raton, Florida 33432

ARTICLE VIII

Officers

<u>Name and Addresses</u>	<u>Office</u>
GEORGE H. SPARLING 9740 S.W. 19th Street Boca Raton, Florida 33432	President
MADALEANE H. EVANS 23099 Barwood Lane North #301 Boca Raton, Florida 33432	Vice President
BARBARA M. SPARLING 9740 S.W. 19th Street Boca Raton, Florida 33432	Secretary
ELLA E. SURERUS 23099 Barwood Lane North #401 Boca Raton, Florida 33432	Treasurer

ARTICLE IX

Indemnification

Every Director, and every officer of the Association shall be indemnified by the Barwood Condominium Improvement Association, Inc., against all expenses and liabilities, including counsel fees, reasonably incurred by, or imposed upon him in connection with any proceeding to which he may be a party, or in which he may become involved, by reason of his being or having been a Director or officer of the Association, whether or not he is a Director or officer at the time such expenses are incurred, except in such cases wherein the Director or officer is adjudged guilty of willful misfeasance or malfeasance in the performance of his duties; provided that in the event of a settlement, indemnification shall apply only when the Board of Directors approve such settlement and reimbursement as being for the best interest of the Barwood Condominium Improvement Association, Inc. The foregoing right of indemnification shall be in addition to, and not exclusive of all other rights to which such Director or officer may be entitled.

ARTICLE X

Transactions In Which Directors Or Officers Are Interested

No contract or transaction between the Barwood Condominium Improvement Association, Inc., and one or more of its officers or Directors, or between the Barwood Condominium Improvement Association, Inc., and any other corporation, partnership, association or other organization in which one or more of its Directors or officers are directors or officers, or have financial interest, shall be invalid, void or voidable

solely for this reason, or solely because the Director or officer is present at or participates in the meeting of the Board or Committee thereof which authorized the contract or transaction, or solely because his or their votes are counted for such purpose. No Director or Officer of the Association shall incur liability by reason of the fact that he is or may be interested in any such contract or transaction.

ARTICLE XI

By-Laws

The first By-Laws of the Barwood Condominium Improvement Association, Inc., shall be adopted by the Board of Directors named herein, and may be altered, amended or rescinded in the manner provided by the By-Laws.

ARTICLE XII

Amendments

Amendments to these Articles of Incorporation shall be proposed and adopted in the following manner:

1. Notice of the subject matter of a proposed amendment shall be included in the notice of any meeting at which a proposed amendment is considered.

2. A resolution approving a proposed amendment may be proposed by either the Board of Directors or by any one or more of the Barwood Condominium Improvement Association, Inc. Director and members not present in person or by proxy at the meetings considering the amendment may express their approval in writing, providing such approval is delivered to the Secretary of the Barwood Condominium Improvement Association, Inc., at or prior to the meetings.

(a) Such approval must be by not less than seventy-five (75%) percent of the entire membership of the Board of Directors and by not less than seventy-five (75%) percent of the votes of the entire membership of the Barwood Condominium Improvement Association, Inc.; or

(b) By not less than eighty (80%) percent of the votes of the entire membership of the Barwood Condominium Improvement Association, Inc.

3. No amendment shall make any changes in the qualification for membership or in voting rights of members, or any change in Article V and/or Article VI hereof without approval in writing by each member.

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4. A copy of each amendment to the Articles of Incorporation as approved shall be accepted and certified by the Secre-

tary of State and recorded in the Public Records of Palm Beach County, Florida.

ARTICLE XIII

Dissolution of the Association

1. Upon dissolution of the Barwood Condominium Improvement Association, Inc., all of its assets remaining after provision for creditors and payment of all costs and expenses of such dissolution shall be distributed among the members, subject to the limitations set forth below, as tenants in common, each member's share of the assets to be equal.

2. The Barwood Condominium Improvement Association, Inc., may be dissolved upon an unanimous resolution to that effect being adopted by the members of the Board of Directors, and, if such decree be necessary at the time of dissolution, after receipt of an appropriate decree as set forth in Florida Statute 617 or Statute of similar import, and approved by two-thirds of the voting rights of the Barwood Condominium Improvement Association, Inc. members.

ARTICLE XIV

Term

The Barwood Condominium Improvement Association, Inc., shall have perpetual existence.

ARTICLE XV

Subscribers

The names and addresses of the subscribers to these Articles of Incorporation are as follows:

<u>Name</u>	<u>Address</u>
George H. Sparling	9740 S.W. 19th Street Boca Raton, Florida 33432
Madaleane H. Evans	23099 Barwood Lane North #301 Boca Raton, Florida 33432
Barbara M. Sparling	9740 S.W. 19th Street Boca Raton, Florida 33432
Ella E. Surerus	23099 Barwood Lane North #401 Boca Raton, Florida 33432

WITNESS my hand and official seal at Boca Raton, said
State and County, on the 21ST day of JANUARY, 1976.

Madeline C. Remark
NOTARY PUBLIC

My Commission Expires:

Notary Public, State of Florida at Large
My Commission Expires Sept. 25, 1976
Bonded by American Fire & Casualty Co.

CERTIFICATE DESIGNATING PLACE OF
BUSINESS OR DOMICILE FOR THE SERVICE OF
PROCESS WITHIN THIS STATE, NAMING AGENT UPON WHOM
PROCESS MAY BE SERVED.

In pursuance of Chapter 48.091, Florida Statutes, the
following is submitted, in compliance with said Act:

BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.,
desiring to organize under the laws of the State of Florida
with its principal office, as indicated in the Articles of
Incorporation at City of Boca Raton, County of Palm Beach,
State of Florida, has named Jay J. REYNOLDS, ESQ., located
at 301 West Camino Gardens Boulevard, Plaza Two Building,
City of Boca Raton, County of Palm Beach, State of Florida,
as its agent to accept service of process within this State.

ACKNOWLEDGMENT:

Having been named to accept service of process for the
above stated corporation, at place designated in this certificate,
I hereby accept to act in this capacity, and agree to comply
with the provision of said Act relative to keeping open said
office.

BY:

Jay J. Reynolds
JAY J. REYNOLDS, ESQ.
Resident Agent

EXHIBIT I
BY-LAWS OF THE
BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC.

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM IV, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

BY-LAWS
OF
BARWOOD CONDOMINIUM IMPROVEMENT
ASSOCIATION, INC.

1. IDENTITY. These are the By-Laws of the BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC., herein called the Association, a corporation not for profit under the laws of the State of Florida, the Articles of Incorporation of which were filed in the office of the Secretary of State of Florida on the 23rd day of March, A.D., 1976. The Association has been organized to promote the health, recreation and social welfare of all Unit Owners of condominium parcels within the area described in Exhibit 1 attached to the Articles of Incorporation of BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC., hereinafter referred to as Exhibit 1.

1.1 Definitions. All terms used herein which are defined by the Declaration of Condominium or Declaration of Covenants and Restrictions for Improvement and Maintenance, or by Florida Statute 711 (1974), the Condominium Act, shall be used herein with the same meaning as defined in said Declaration or said Statute.

1.2 The fiscal year shall be the calendar year.

1.3 The office of the Association shall be 23099 Barwood Lane North, Boca Raton, Florida 33432, or such other place or places as the Board of Directors may from time to time determine.

1.4 The seal of the Association shall have inscribed thereon the name of the Association, the year of its organization and the words "corporation not for profit". Said seal may be used by causing it or a facsimile thereof to be impressed, affixed, reproduced or otherwise.

2. MEMBERSHIP AND MEMBERS' MEETINGS.

2.1 Qualification. The members of the Association shall consist of all record Unit Owners of a residential condominium parcel within the area described in Exhibit 1, and such membership shall become effective immediately upon a party becoming a record title holder of a condominium parcel.

2.2 Special Members' Meetings shall be held at the office of the corporation whenever called by the President or by a majority of the Board of Directors. The business conducted at such special meetings shall be limited to that stated in the notice of meeting. The special meeting of the members held annually to

elect the Board of Directors shall be held on the third Monday of the month of January.

2.3 Notice of all members' meetings stating the time and place and the objects for which the meeting is called shall be given by the President or Vice President or Secretary, unless waived in writing. Such notice shall be written or printed and shall state the time and place and object for which the meeting is called. Such notice shall be given to each member not less than ten (10) days, nor more than sixty (60) days prior to the date set for such meeting, which notice shall be mailed or presented personally to each member within said time. If presented personally, receipt for such notice shall be signed by the member, indicating the date on which such notice was received by him. If mailed, such notice shall be deemed to be properly given when deposited in the United States mails, addressed to the member at his post office address as it appears on the records of the Association, the postage thereon prepaid. Proof of such mailing shall be given by the affidavit of the person giving the notice. Any member may, by written notice signed by such member, waive such notice, and such waiver, when filed in the records of the Association, whether before or after the holding of the meeting, shall be deemed equivalent to the giving of such notice to such member.

2.4 A quorum. A quorum at members' meeting shall consist of the presence in person or by proxy of a majority of the votes of the entire membership. The acts approved by a majority of the votes present at a meeting at which a quorum is present shall constitute the acts of the members, except where approval by a greater number of members is required by the Articles of Incorporation or these By-Laws.

2.5 Voting.

1. In any meeting of members, the Unit Owners of a condominium parcel shall be entitled to cast one vote for each condominium parcel so owned.

2. If a condominium parcel is owned by one person, his right to vote shall be established by the roster of unit owners kept by the Secretary of the Association. If a condominium parcel is owned by more than one person, or is under lease, the person entitled to cast the vote for the condominium parcel shall be designated by a certificate signed by all of the record owners of the condominium parcel according to the roster of unit owners and filed with the Secretary of the Association. If a condominium parcel is owned by a corporation, the person entitled to cast the vote for the condominium parcel shall be designated by a certificate signed by the president or vice president and attested by the secretary or assistant secretary of the corporation and filed with the secretary of the Association. Such certificates

shall be valid until revoked or until superseded by a subsequent certificate or until a change in ownership of the condominium parcel concerned. A certificate designating the person entitled to cast the vote of a condominium parcel may be revoked by any owner thereof. If such certificate is not on file, the vote of such owners shall not be considered in determining the requirement for a quorum nor for any other purpose.

2.6 Proxies. Votes may be cast in person or by proxy. A proxy may be made only to an owner of a unit entitled to vote within the area described in Exhibit 1. A proxy may be made by any person entitled to vote and shall be valid only for the particular meeting designated therein and must be filed with the Secretary before the appointed time of the meeting, or any adjournment thereof.

2.7 Adjourned meetings. If any meeting of members cannot be organized because a quorum has not attended, the members who are present, either in person or by proxy, may adjourn the meeting from time to time until a quorum is present.

2.8 At meetings of the membership, the President shall preside, or in his absence, the Vice President shall preside, or in the absence of both, the membership shall select a chairman.

2.9 The order of business at members' meetings shall be:

1. Determination of chairman of the meeting.
2. Calling of the roll and certifying of proxies.
3. Proof of notice of meeting or waiver of notice.
4. Reading and disposal of any unapproved minutes.
5. Reports of officers.
6. Reports of committees.
7. Election of inspectors of elections.
8. Election of directors.
9. Unfinished business.
10. New business.
11. Adjournment.

3. DIRECTORS.

3.1 Membership. The affairs of the Association shall be managed by a board of a number of directors to be determined as follows:

1. Three (3) directors initially which number shall remain the same until the Developer has sold and conveyed all condominium parcels within the area described in Exhibit 1, or sooner upon option and notification by the Developer.

2. Not less than three (3) nor more than nine (9) to be elected at the first election of directors.

3. A nominating committee of five (5) members shall be appointed by the Board of Directors not less than thirty (30) days prior to the annual members' meeting. The committee shall nominate one (1) person for each director then serving or to serve as may be adjusted by a vote of the membership as hereinabove provided for. Other nominations may be made from the floor.

4. The election shall be by ballot (unless dispensed by unanimous consent) and by a plurality of the votes cast, each person voting being entitled to cast his votes for each of as many nominees as there are vacancies to be filled. There shall be no cumulative voting.

5. Except as to vacancies provided by removal of directors by members, vacancies in the Board of Directors occurring between special meetings of members shall be filled by the remaining directors.

6. Any director may be removed by concurrence of two-thirds of the votes of the entire membership at a special meeting of the members called for that purpose. The vacancy in the Board of Directors so created shall be filled by the members of the Association at the same meeting.

3.2 The term of each director's service shall extend until the next annual meeting of the members and thereafter until his successor is duly elected and qualified or until he is removed in the manner elsewhere provided.

3.3 Regular meetings of the Board of Directors may be held at such time and place as shall be determined from time to time by a majority of the directors. Notice of regular meetings shall be given to each director, personally or by mail, telephone or telegraph at least three (3) days prior to the day named for each meeting.

3.4 Special meetings of the directors may be called by the President and must be called by the Secretary at written request of one-half of the directors. Not less than three (3) days' notice of the meeting shall be given personally or by mail, telephone, which notice shall state the time, place and purpose of the meeting.

3.5 Waiver of notice. Any director may waive notice of a meeting before or after the meeting and such waiver shall be deemed equivalent to the giving of notice.

3.6 A quorum at directors' meetings shall consist of a majority of the entire Board of Directors. The acts approved by a majority of those present at a meeting at which a quorum is present shall constitute the acts of the Board of Directors,

except where approval by written consent or by a greater number of directors is required by the Articles of Incorporation or these By-Laws.

3.7 Adjourned meetings. If at any meeting of the Board of Directors there be less than a quorum present, the majority of those present may adjourn the meeting from time to time until a quorum is present. At any adjourned meeting any business which might have been transacted at the meeting as originally called may be transacted without further notice.

3.8 Joinder in meeting by approval of minutes. The joinder of a director in the action of a meeting by signing and concurring in the minutes thereof shall constitute the presence of such a director for the purpose of determining a quorum.

3.9 The presiding officer of director's meetings shall be the chairman of the board if such an officer has been elected; and, if none, the President shall preside. In the absence of the presiding officer, the directors present shall designate one of their number to preside.

3.10 The order of business at directors' meetings shall be:

1. Calling of roll.
2. Proof of due notice of meeting.
3. Reading and disposal of any unapproved minutes.
4. Reports of officers and committees.
5. Election of officers.
6. Unfinished business.
7. New business.
8. Adjournment.

4. POWERS AND DUTIES OF THE BOARD OF DIRECTORS.

4.1 All of the powers and duties of the Association existing under any Declaration of Covenants and Restrictions, Articles of Incorporation and these By-Laws shall be exercised exclusively by the Board of Directors, its agents, contractors or employees, subject only to approval by members of the Association when such is specifically required. Such powers and duties of the directors shall include, but shall not be limited to the following, subject, however, to the provisions of the Declaration of Covenants and Restrictions for Improvements and Maintenance, the Articles of Incorporation and these By-Laws.

1. To purchase insurance for the protection of the Association and its members.

2. To acquire and enter into agreement whereby it acquires leaseholds, memberships and any other possessory or use interests in lands, or facilities whether or not contiguous

to the lands described in Exhibit 2, attached to the Articles of Incorporation of Barwood Condominium Improvement Association, Inc., intended to provide for the enjoyment, recreation or other use and benefit of the unit owners, and to declare expenses in connection therewith to be subject to assessment to the members.

3. To pay all costs of power, gas, water, sewer and other utility services rendered to the unit owners and not billed to the owners of the separate condominium parcels.

4. To enforce by legal means, the provisions of the Articles of Incorporation and By-Laws of the Association, Declaration of Covenants and Restrictions for Improvement and Maintenance and the Regulations hereinafter promulgated governing use of the Association's properties.

5. To appoint and remove at the pleasure all officers, agents and employees of the Association, prescribe their duties, fix their compensation, and require of them such security or fidelity bond as it may deem expedient. Nothing contained in these By-Laws shall be construed to prohibit the employment of any member, officer or Director of the Association in any capacity whatsoever.

6. To establish, levy and assess, and collect the assessments necessary to operate the Association and carry on its activities, and to create such reserves for extraordinary expenditures as may be deemed appropriate by the Board of Directors.

4.2 The undertakings, leases and contracts authorized by the initial board shall be binding upon the Association in the same manner and with the same effect as though such undertakings, leases and contracts had been authorized by the first Board of Directors, duly elected by the membership after the members have relinquished control of the Association, notwithstanding the fact that members of the initial Board of Directors may be directors or officers of, or otherwise associated with the BARWOOD DEVELOPMENT CORPORATION, or other entities doing business with the Association.

5. EXECUTIVE OFFICERS.

5.1 The executive officers of the corporation shall be a President, who shall be a director; a Vice President, who shall be a director; a Treasurer; a Secretary; and, an Assistant Secretary, all of whom shall be elected annually by the Board of Directors and who may be peremptorily removed by vote of the directors at any meeting by concurrence of a majority of all of the directors. Any person may hold two or more offices except that the President shall not also be the Secretary or an Assistant Secretary. The Board of Directors shall from time to time elect such other officers and designate their powers and duties as the board shall find to be required to manage the affairs of the Association.

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5.2 The President shall be the chief executive officer of the Association. He shall have all of the powers and duties

which are usually vested in the office of president of an association, including but not limited to, the power to appoint committees from among the members from time to time, as he may in his discretion deem appropriate, to assist in the conduct of the affairs of the Association.

5.3 The Vice President shall in the absence or disability of the President, exercise the powers and perform the duties of the President. He shall also generally assist the President and exercise such other powers and perform such other duties as shall be prescribed by the directors.

5.4 The Secretary shall keep the minutes of all proceedings of the directors and the members. He shall attend to the giving and serving of all notices to the members and directors and other notices required by law. He shall have custody of the seal of the Association and affix the same to instruments requiring a seal when duly signed. He shall keep the records of the Association, except those of the Treasurer, and shall perform all other duties incident to the office of Secretary of an association and as may be required by the directors of the President. The Assistant Secretary shall perform the duties of the Secretary when the Secretary is absent.

5.5 The Treasurer shall have custody of all property of the Association, including funds, securities and evidences of indebtedness. He shall keep books of account for the Association in accordance with good accounting practices, which, together with substantiating papers, shall be made available to the Board of Directors for examination at reasonable times. He shall submit a Treasurer's report to the Board of Directors at reasonable intervals and shall perform all other duties incident to the office of treasurer.

5.6 The compensation of all officers and employees of the Association shall be fixed by the directors.

6. FISCAL MANAGEMENT. The provisions for fiscal management of the Association set forth in the Articles of Incorporation shall be supplemented by the following provisions:

6.1 Accounts. The receipts and expenditures of the Association shall be credited and charged to accounts which shall include but not be limited to the following classifications as shall be appropriate, all of which expenditures shall be common expenses:

1. Current expenses, which shall include all receipts and expenditures to be made within the year for which the budget is made, including a reasonable allowance for contingencies and working funds, except expenditures chargeable to reserves or to betterments. The balance in this fund at the end of the year shall be applied to reduce the assessments for current expenses for the succeeding year.

2. Reserve for deferred maintenance, which shall include funds for maintenance items which occur less frequently than annually.

3. Reserve for replacement, which shall include funds for repair or replacement required because of damage, depreciation or obsolescence.

4. Betterments, which shall include the funds which may be used for capital expenditures for additional improvements or additional personal property.

5. The Board of Directors shall have the authority, during a budget year, to transfer funds which, in its discretion, it deems unnecessary to hold for the purposes of a particular account, to and for the use of another purpose in another account.

6.2 Budget. The Board of Directors shall adopt a budget for each calendar year which shall include the estimated fund required to defray the common expense and to provide and maintain funds for account and reserves including but not limited to the following, according to good accounting practices:

1. Current expense. Current expense shall include all funds and expenditures to be made within the year for which the funds are budgeted and may include a reasonable allowance for contingencies and working funds. The balance in this fund at the end of the year shall be applied to reduce the assessments for current expenses for the succeeding year, or to fund reserves.

2. Reserve for Deferred Maintenance. Reserve for deferred maintenance shall include funds for maintenance items which occur less frequently than annually.

3. Reserve for Replacement. Reserve for replacement shall include funds for repair or replacement required because of damage, depreciation or obsolescence.

4. Betterments, which shall include the funds to be used for capital expenditures for additional improvements or additional personal property which will be part of the common elements, the amount for which shall not exceed Five Thousand (\$5,000.00) Dollars; provided, however, that in the expenditure of this fund no sum in excess of Five Thousand (\$5,000.00) Dollars shall be expended for a single item or purpose unless such betterment has been approved by the members of the Association.

5. Copies of the budget and proposed assessments shall be available to each member on or before December 15th, preceding the year for which the budget is made and shall be filed in the office of the Association.

6.3 Assessments for Common Expenses. Assessments against the condominium parcel owners for their share of the common expenses shall be made for the calendar year annually in advance on or before December 20th, preceding the year for which the assessments are made. Such assessments shall be due and paid in equal monthly installments beginning on the first day of January of the year for which the assessment is made and the first day of each month thereafter. If an annual budget is not made as required, the monthly assessment shall be presumed to have been made in the amount of the last prior assessment and monthly installments thereon shall be due upon each installment payment date until changed by an amended assessment. In the event the annual assessment proves to be insufficient, the budget and assessments therefore may be amended at any time by the Board of Directors.

6.4 The depository of the Association shall be such bank or banks as shall be designated from time to time by the directors and in which the monies of the Association shall be deposited. Withdrawal of monies from such accounts shall be only by checks signed by such persons as are authorized by the directors.

6.5 An audit of the accounts of the Association shall be made annually by a certified public accountant, and a copy of the audit report shall be furnished to each member not later than April 1st of the year following the year in which the audit was made.

6.6 Fidelity bonds shall be required by the Board of Directors from all persons handling or responsible for Association funds. The amount of such bonds and the sureties shall be determined by the directors. The premiums on such bonds shall be paid by the Association as a common expense.

6.7 The termination of membership in the Association shall not relieve or release any such former owner or a member from a liability or obligation incurred under or in any way connected with the Association during the period of membership, or impair any rights or remedies which the Association may have against such former member arising out of or in any way connected with such membership and the covenants and obligations incident thereto.

7. RULES AND REGULATIONS.

7.1 The Board of Directors may, from time to time, adopt or amend previously adopted administrative rules and regulations governing the details of the operation, use, maintenance, management and control of any facilities or services made available to the condominium parcel owners. The Board of Directors shall, from time to time, post in a conspicuous place on the condominium properties, a copy of the rules and regulations adopted from time to time by the Board of Directors.

8. REGISTERS.

8.1 The Secretary of the Association shall maintain a register in the corporation office showing the names and addresses of members. It shall be the obligation of the individual members to advise the Secretary of the Association of any change of address and ownership as otherwise provided. The Association, for purposes of notification, shall have the right to rely upon the last given address of each of the members.

9. AMENDMENTS.

9.1 Notice of the subject matter of a proposed amendment shall be included in the notice of any meeting at which a proposed amendment is considered.

9.2 A resolution adopting a proposed amendment may be proposed by with the Board of Directors of the Association or by the members of the Association. Directors and members not present in person or by proxy at the meeting considering the amendment may express their approval in writing, providing such approval is delivered to the Secretary at or prior to the meeting. Except as elsewhere provided, such approvals must be either:

1. Not less than seventy-five (75%) percent of the entire membership of the Board of Directors and by not less than seventy-five (75%) percent of the votes of the entire membership of the Association; or

2. By not less than eighty (80%) percent of the votes of the entire membership of the Association.

9.4 Execution and Recording. A copy of each amendment shall be attached to a certificate certifying that the amendment was duly adopted as an amendment of the By-Laws, which certificate shall be executed by the officers of the Association with the formalities of a deed. The amendment shall effective when such certificate and a copy of the amendment are recorded in the Public Records of Palm Beach County, Florida.

10. PARLIAMENTARY RULES. Roberts' Rules of Order (latest edition) shall govern the conduct of the Association meeting when not in conflict with the Declaration of Covenants and Restrictions for Improvement and Maintenance, the Declaration of Condominium, Articles of Incorporation or these By-Laws.

11. MISCELLANEOUS.

11.1 Whenever the masculine singular form of the person is used in these By-Laws, it shall be construed to mean the masculine, feminine or neuter, singular or plural, wherever the context so requires.

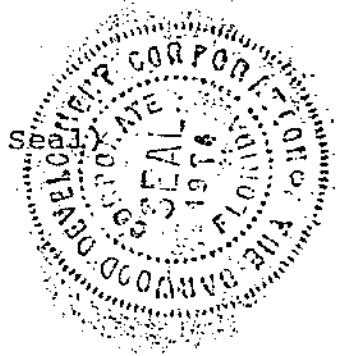
11.2 If any irreconcilable conflicts should exist, or hereafter arise, with respect to the interpretation of these By-Laws and the Articles of Incorporation or the Declaration of Covenants and Restrictions for Improvement and Maintenance, the provisions of the Declaration of Covenants and Restrictions for Improvement and Maintenance shall prevail.

11.3 Corporation and Association are used synonymously.

The foregoing was adopted as the By-Laws of BARWOOD CONDOMINIUM IMPROVEMENT ASSOCIATION, INC., a corporation not for profit under the laws of the State of Florida, at the first meeting of the Board of Directors, on the 27th day of March, 1976.

Barbara M. Spaulding
Secretary

(Corporate Seal)



Approved:

Barbara M. Spaulding
President

EXHIBIT J

DECLARATION OF CONDOMINIUM

FOR

BARWOOD CONDOMINIUM, IV, A CONDOMINIUM

PALM BEACH COUNTY, FLORIDA

INSURANCE TRUST AGREEMENT

INSURANCE TRUST AGREEMENT

MADE this 24 day of March, 1978, between BARWOOD CONDOMINIUM IV ASSOCIATION, INC. a Florida corporation not for profit, whose address is Boca Raton, Florida, hereinafter called "Association", and BOCA RATON NATIONAL BANK, a national banking association of Boca Raton, Florida, as Trustee, hereinafter called "Insurance Trustee."

WHEREIN IT IS AGREED AS FOLLOWS:

1. BARWOOD CONDOMINIUM IV, a condominium. The Declaration of Condominium dated March 24, 1978, and recorded in Official Records Book _____ at Pages _____ through _____, inclusive of Palm Beach County, Florida situated on the lands described in Exhibit A attached hereto and made a part hereof. Such Declaration of Condominium is incorporated herein by reference. Such instrument is herein called "Declaration." A conformed copy of the recorded Declaration has been filed with the Insurance Trustee.

2. Provisions of Declaration. The Declaration provides that certain insurance shall be purchased by the Association and that the policies and endorsements thereon shall be deposited with the Insurance Trustee and that payment for losses thereunder shall be made to the Insurance Trustee. The Declaration also makes provisions for the collection and disbursement of proceeds of such policies. This Insurance Trust Agreement is made in order to state the insurance provisions of the Declaration in an agreement with Insurance Trustee.

3. Insurance Trustee; Share of proceeds. All insurance policies purchased by the Association shall be for the benefit of the Association and the unit owners and their mortgages as their interest may appear, and shall provide that all proceeds covering casualty losses shall be paid to any national bank in Broward or Palm Beach Counties, with trust powers, as may be approved by the board of directors of the Association, and designated insurance trustee, which trustee is herein referred to as the Insurance Trustee. The Insurance Trustee shall not be liable for payments of premiums nor for the failure to collect any insurance proceeds. The duty of the Insurance Trustee shall be to receive such proceeds as are paid and hold the same in trust for the for the purposes elsewhere stated herein and for the benefit of the unit owners and their mortgages in the following shares, but which shares need not be set forth in the records of the Insurance Trustee:

1. Common Elements. Proceeds on account of common elements

shall be held in as many undivided shares as there are units in each building, the shares of each unit owner being the same as his share in the common elements, as same are hereinabove stated.

2. Units. Proceeds on account of units shall be held in the following shares:

(a) Partial Destruction, when the building are to be restored for the owners of damaged units in proportion to the cost of repairing the damage suffered by each unit owner.

(b) Total Destruction of the building or when the buildings are to be restored, to owners of all units in the buildings, each owner's share being in proportion to his share in the common elements appurtenant to his unit.

(c) Mortgagee. In the event a mortgagee endorsement has been issued as to a unit, the share of the unit owner shall be held in trust for the Mortgagee and the unit owner as their interests appear. In no event shall any mortgagee have the right to demand the application of insurance proceeds to any mortgage or mortgages which it may hold against units, except to such extent as said insurance proceeds may exceed the actual cost of repair or restoration of the damaged building or buildings, and no mortgagee shall have any right to participate in the determination as to whether or not improvements will be restored after casualty.

4. Distribution of Proceeds. Proceeds of insurance policies received by the Insurance Trustee shall be distributed to or for the benefit of the beneficial owners in the following manner:

1. Expense of Trust. All expenses of the Insurance Trustee shall be first paid or provisions made therefor.

2. Reconstruction or Repair. If the damage for which the proceeds are paid is to be repaired or reconstructed, the remaining proceeds shall be paid to defray the costs thereof as elsewhere provided. Any proceeds remaining after defraying such costs shall be distributed to the beneficial owner, remittances to unit owners and their mortgagees being payable jointly to them. This is a covenant for the benefit of any mortgagee of a unit and may be enforced by such mortgagee.

3. Failure to Reconstruct or Repair. If it is determined in the manner elsewhere provided that the damages for which the proceeds are paid shall not be reconstructed or repaired, the remaining

proceeds shall be distributed to the beneficial owners, remittances to unit owners and their mortgagees being payable jointly to them. This is a covenant for the benefit of any mortgagee of a unit and may be enforced by such mortgagee.

4. Certificate. In making distribution to unit owners and their mortgagees, the Insurance Trustee may rely upon a certificate of the Association as to the names of the unit owners and their respective shares of the distribution.

5. Association as Agent. The Association is hereby irrevocably appointed agent for each unit owner to adjust all claims arising under insurance policies purchased by the Association.

5. Reconstruction or Repair after Casualty.

1. Determination to Reconstruct or Repair. If any part of the condominium property shall be damaged by casualty, whether or not it shall be reconstructed or repaired shall be determined in the manner provided by the Declaration.

2. Certificate. The Insurance Trustee may rely upon a Certificate of the Association made by the President and Secretary to determine whether or not the damaged property is to be reconstructed or repaired.

6. Construction Funds. The funds for payment of costs of reconstruction and repair after casualty which shall consist of proceeds of insurance held by the Insurance Trustee and funds collected by the Association from assessments against unit owners, shall be disbursed in payment of such costs in the following manner:

1. Association. If costs of reconstruction and repair which are the responsibility of the Association are more than \$5,000.00, then the sums paid upon assessments to meet such costs shall be deposited by the Association with the Insurance Trustee. In all other cases the Association shall hold the sums paid upon such assessments and disburse the same in payment of the costs of reconstruction and repair.

2. Insurance Trustee. The proceeds of insurance collected on account of a casualty, and the sums deposited with the Insurance Trustee by the Association from the collections of assessments against unit owners on account of such casualty, shall constitute a construction fund which shall be disbursed in payment of the costs of reconstruction and repair in the following manner:

(a) Unit Owner. The portion of insurance proceeds representing damage for which the responsibility of reconstruction and repair lies with the unit owner shall be paid by the Insurance Trustee to the unit owner, and the mortgagee jointly.

(b) Association - Lesser Damage. If the amount of the estimated costs of reconstruction and repair which is the responsibility of the Association is less than \$5,000.00, then the construction fund shall be disbursed in payment of such costs upon the order of the Association; provided, however, that upon request to the Insurance Trustee by a mortgagee which is a beneficiary of an insurance policy the proceeds of which are included in the construction fund, such fund shall be disbursed in the manner hereafter provided for the reconstruction and repair of major damage.

(c) Association - Major Damage. If the amount of the estimated costs of reconstruction and repair which is the responsibility of the Association is more than \$5,000.00, then the construction fund shall be disbursed in payment of such costs in the manner required by the board of directors of the Association and upon approval of an architect qualified to practice in the State of Florida and employed by the Association to supervise the work.

(d) Surplus. It shall be presumed that the first monies disbursed in payment of costs of reconstruction and repair shall be from insurance proceeds. If there is a balance in a construction fund after payment of all costs of the reconstruction and repair for which the fund is established, such balance shall be distributed to the beneficial owners of the fund in the manner elsewhere stated; except, however, that the part of a distribution to a beneficial owner which is not in excess of assessments paid by such owner into the construction fund shall not be made payable to any mortgagee.

(e) Certificate. Notwithstanding the provisions herein, the Insurance Trustee shall not be required to determine whether or not sums paid by unit owners upon assessments shall be deposited by the Association with disbursements from the construction fund are to be upon the order of the Association or upon approval of an architect or otherwise, nor whether a disbursement is to be made from the construction fund no to determine the payee nor to determine whether surplus funds to be distributed are less than the assessments paid by owners. Instead the Insurance Trustee

may rely upon a Certificate of the Association made by its President and Secretary as to any or all of such matters and stating that the sums to be paid are due and properly payable and stating the name of the payee and the amount to be paid; provided, that when a mortgagee is hereby required to be named as payee, the Insurance Trustee shall also name the mortgagee as payee of any distribution of insurance proceeds to a unit owner and further provided that when the Association or a mortgagee which is the beneficiary of an insurance construction fund, so requires the approval of an architect named by the Association shall first be obtained by the Association upon disbursements in payment of costs of reconstruction and repair.

7. Termination. This agreement shall continue as long as members of the Association have an insurable interest in the improvements upon said lands unless sooner terminated upon reasonable notice to the date of the termination; provided that if notice of termination is given prior to the appointment of a successor Insurance Trustee, a copy of such notice shall be mailed by registered or certified mail by the party giving the notice to each record owner of a mortgage upon an apartment of the condominium.

8. Interpleader. In the event of disagreement between the parties or with any of the beneficiaries or their mortgagees concerning the subject matter of this agreement, the Insurance Trustee at its discretion may withhold action on its part until directed to proceed by agreement of the parties to any such dispute or by an Order of a court of competent jurisdiction, or the Insurance Trustee in its discretion may deposit the subject matter of the dispute in the registry of a court of competent jurisdiction and interplead the other parties to such dispute.

EXECUTED by the parties on the date written above.

WITNESSES:

Barbara J. Neuman

Pamela Reedel

BARWOOD CONDOMINIUM ASSOCIATION IV, INC

By George H. Sparling
GEORGE H. SPARLING, PRESIDENT

ATTEST: Barbara M. Sparling
BARBARA M. SPARLING, SECRETARY

JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 North Federal Highway
Boca Raton, Florida 33431

Sheet 1 of 4
JG 100-1948
June 23, 1977

BUILDING AREA 1-A-5
LEGAL DESCRIPTION

JOINDER OF MORTGAGEE

Boca Raton Federal Savings & Loan Association of Boca Raton, Florida, as Mortgagee of the land submitted to condominium hereby, joins in the Declaration of Condominium for BARWOOD CONDOMINIUM IV, a Condominium, to consent to the submission of said land to the condominium form of ownership.

EXECUTED this 24 day of March, 1978.

Witnesses:

Deborah A. Pearson
Cheryl Wildberger

BOCA RATON FEDERAL SAVINGS &
LOAN ASSOCIATION of Boca Raton, Florida

By Arthur J. Martell
Attest: Ernie M. Heming

State of Florida
County of Palm Beach

PERSONALLY APPEARED before me, the undersigned authority,
Arthur J. Martell and Ernie M. Heming,
as Vice President and Asst. Secy,
respectively of the Boca Raton Federal Savings & Loan Association
of Boca Raton, Florida, who after first being duly sworn, deposed and
said that they executed the foregoing Joinder of Mortgage for the uses
and purposes therein expressed as such officers.

Witness my hand and official seal this 24th day of
March, 1978, in the State and County last aforesaid.

Hayle McDonald
Notary Public, State of Florida

My Commission Expires: NOTARY PUBLIC STATE OF FLORIDA AT LARGE
MY COMMISSION EXPIRES AUG 11 1981

(SEAL)

BUILDING AREA 1-A-5 (Continued)

thence with a bearing of N. $65^{\circ} 00' 34''$ E., a distance of 110.59 feet to a point; thence with a bearing of N. $56^{\circ} 42' 00''$ E., a distance of 66.12 feet more or less to the Point of Beginning.

Containing 1.308 Acres, more or less and subject to easements and rights-of-way or record.

ALSO subject to an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 67.20 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 77.9 feet to a point; thence with a bearing of S. $43^{\circ} 06' 02''$ E., a distance of 77.5 feet to a point; thence with a curve to the right having a radius of 222.50 feet, an arc length of 70.33 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned curve to the right having a radius of 222.50 feet, an arc length of 13.94 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 18.85 feet to a point designated as Point "C"; thence continuing along the aforementioned course of S. $21^{\circ} 24' 00''$ E., a distance of 244.70 feet more or less to the end of the centerline of the subject easement.

ALSO Beginning at the aforementioned Point "C"; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 34.75 feet more or less to the end of the centerline of the 25 foot wide subject easement.

ALSO subject to a Utility Easement as shown on Plat I of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records, Palm Beach County, Florida.

TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length

BUILDING AREA 1-A-5 (Continued)

of 67.20 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course a distance of 52.9 feet to a point; thence with a bearing of S. $43^{\circ} 06' 02''$ E., a distance of 77.5 feet to a point; thence with a curve to the right having a radius of 222.50 feet, an arc length of 70.3 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat I of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of S. $72^{\circ} 03' 51''$ E., a distance of 21.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 86.42 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 119.70 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat I of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Land North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to the Point of Beginning of the centerline of the subject easement; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet more or less to the end of the centerline of the subject easement.

BUILDING AREA 1-A-5 (Continued)

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North, as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 156.00 feet more or less to the end of the centerline of the subject easement.